

Shri Nivas v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 December 2019 · Writ-C No. 39422 of 2019 · Writ - C No. 39422 of 2019 · **Writ disposed; delayed objections to be heard; s.127 reserved.**

HEADNOTE

On a missed-deadline challenge to a final electricity assessment, the Court did not quash the assessment. Taking a lenient view, it directed the consumer to appear before the Executive Engineer with a belated objection, a speaking final order within four weeks, and a short stay of coercive recovery, leaving any remaining grievance to a Section 127 appeal.

FACTUAL SUMMARY

Shri Nivas filed a writ against a final assessment dated 27 July 2019 issued by the Executive Engineer (respondent no. 2), seeking to quash it and a mandamus to let him file a belated objection. He said unusual circumstances had prevented a timely objection, and that the department was taking coercive recovery without a further hearing or following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The High Court did not try the assessment on merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to s.127 after delayed-objection hearing

HOLDING

The Court did not quash the 27 July 2019 final assessment or decide Supply Code compliance. Taking a lenient view of the missed objection deadline, it directed the petitioner to appear before the Executive Engineer on 17 December 2019 with his objection and evidence; the officer was to pass a speaking final order within four weeks; and coercive action was stayed for seven weeks or until that disposal, with automatic revival of the recovery citation on default. Any remaining grievance after that final order was left to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal On a missed-deadline challenge to a final electricity assessment, the Court did not quash the assessment.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE 27 JULY 2019 FINAL ASSESSMENT

The Court did not examine the assessment on merits. ¶ 1

NOT DECIDED — COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Non-compliance was alleged but not decided. ¶ 1